

Sandeep vs Smt Sanju And Anr on 8 January, 2020

Bench: Sabina, Narendra Singh Dhaddha

HIGH COURT OF JUDICATURE FOR RAJASTHAN
BENCH AT JAIPUR

D.B. Civil Miscellaneous Appeal No.2817/2018

Sandeep S/o Shri Dayanand, R/o Pichanwa, Tehsil Surajgarh,
District Jhunjhunu.

----Appellant

Versus

1. Smt Sanju D/o Shri Gurudayal W/o Shri Sandeep.
2. Dimpi (minor) D/o Shri Sandeep through mother natural
guardian (respondent No.1), R/o Pichanwa, Tehsil Surajgarh,
District Jhunjhunu at present Ward No.19, Adarsh Colony,
Chirawa, District Jhunjhunu.

----Respondents

Connected With

D.B. Civil Miscellaneous Appeal No.2816/2018
Suresh S/o Shri Dayanand, R/o Pichanwa, Tehsil Surajgarh,
District Jhunjhunu.

----Appellant

Versus

1. Smt Anita D/o Shri Gurudayal W/o Shri Suresh
2. Khushi (minor) D/o Shri Suresh through mother natural
guardian (respondent No.1), R/o Pichanwa, Tehsil Surajgarh,
District Jhunjhunu at present Ward No.19, Adarsh Colony,
Chirawa, District Jhunjhunu.

----Respondent

For Appellant(s) : Shri Ved Pal Shastri
For Respondent(s) : Shri Shailendra Singh Balwada

HON'BLE MRS. JUSTICE SABINA
HON'BLE MR. JUSTICE NARENDRA SINGH DHADDHA

Order

08/01/2020

BY THE COURT : (PER HON'BLE DHADDHA, J.)

(2 of 5) [CMA-2817/2018] Since both the appeals arose out of the same Family Court orders dated 4.5.2018, they are heard together and decided by this common order.

1. Both the appeals have been filed by the appellants - Suresh and Sandeep, who are real brothers of the same family against the orders of the learned Family Court, Jhunjhunu passed on 04.05.2018 whereby the learned Family Court allowed the matrimonial Civil Misc. Case No.431/2017 and another Civil Misc. Case No.429/2017 filed u/s 24 and 26 of the Hindu Marriage, Act, 1955 (for short "the Act") for interim maintenance with directions to each of the appellants to pay Rs.8,000/- per month as pendente lite maintenance to the each of the wives from the date of submission of application to final decision of both the main petitions, Rs.5,000/- as a lump sum litigation and legal advice expenses and Rs.200/- for per hearing of the case. In case, the respondent wives are getting any maintenance in any other case, then the same shall be adjusted.

2. Brief facts giving rise to both the appeals are that marriage of both the appellants-Sandeep and Suresh was solemnized with respondents Smt. Sanju and Smt. Anita, respectively, on 12.4.2011 as per Hindu rites and customs. After marriage, matrimonial obligations were performed by both the parties and each of them were blessed with a female child, namely Dimpi and Khushi. After sometime, each of the appellants started mentally torturing their wives for the demand of dowry and car. On 09.08.2014, each of the appellants and their family members left the respondent wives and children along with their 'Stridhan' at their parental house. Whereupon, FIR No.415/2014 by Smt. Sanju and another FIR No.419/2014 by Smt. Anita were lodged at (3 of 5) [CMA-2817/2018] Police Station Chirawa for offences punishable u/s 498A, 406 and 323 of the Indian Penal Code. During investigation, each of the appellants and the family members effected a compromise not to torture / harass each of the respondent wives and on this basis, police submitted final negative report in both the FIRs. After some time, both the respondent wives lodged FIR No.421/2015 at Police Station Chirawa for the same offences mentioned above in earlier FIRs. Police, after due investigation, submitted challan in the Court of Judicial Magistrate, Chirawa which are pending. In these facts and circumstances, each of the appellants had filed divorce petitions. Out of compulsion, each of the wives has to live at their parental house. During pendency of the main petition, each of the respondent wives filed application u/s 24 and 26 of the Act for grant of maintenance which was allowed vide impugned order dated 04.05.2018.

3. The appellants (husband) in their reply denied all the allegations. They stated that they did not torture the respondent wives physically or mentally. They submitted that the respondent wives lodged false FIR No.421/2015 by concocting and fabricating false facts. Each of the wives were living separately of their own will. So, the application be rejected.

4. Learned counsel for the appellant submitted that the impugned orders dated 04.05.2018 are illegal, arbitrary and against the material available on record. He submitted that the appellants had no permanent source of income. They are dependent upon their parents.

5. Learned counsel for the appellants further submitted that the respondent wives had deserted the appellants. He also (4 of 5) [CMA-2817/2018] submitted that there was no evidence regarding any agricultural land in the names of the appellants.

6. Learned counsel for the appellants further submitted that the respondent wives are trained teachers and each of them is earning Rs.15,000/- per month by doing tuition work. So, they can

maintain themselves. So, the maintenance awarded by the learned Family Court be set aside.

7. On the other hand, the learned counsel for the respondents submitted that there is no illegality and infirmity in the orders passed by the learned Family Court. He submitted that the learned Family Court had passed the orders in its right perspective.

8. We have given our thoughtful consideration to the arguments advanced by the learned counsel for the parties and perused the impugned order and the material available on record.

10. The appellants had not produced any evidence in the Family Court that the respondent wives had an adequate source of income to maintain themselves. It is moral and legal duty of the husband to maintain his wife. His liability would not be absolved that he had no sufficient means of income. Learned Family Court, in the facts and circumstances of the case, had rightly assumed the income of each of the appellants as Rs.20,000/- per month. So, the above mentioned maintenance awarded by the learned Family Court does not suffer from any illegality or infirmity. So, both the appeals are liable to be dismissed.

11. In the result, both the appeals along with stay applications are dismissed. However, we direct the learned Family Court to decide the main case within six months.

(5 of 5) [CMA-2817/2018]

12. A copy of this order be placed in another connected matter.

(NARENDRA SINGH DHADDHA), J

RAJ KUMAR CHAUHAN /17/M48-49